

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404015	TRUJILLO vs GENERAL MOTORS LLC	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

GRANT the Motion for Summary Judgment.

Plaintiff filed the Complaint on July 19, 2024, alleging violations of the Song Beverly Act (SBA) and the Magnuson-Moss Act. To assert a claim under the SBA against the manufacturer, plaintiff must be a retail buyer of *new consumer goods* from a retail seller. (*Dagher v. Ford Motor Co.* (2015) 238 Cal.App.4th 905.) Here, Plaintiff purchased a used Cadillac Escalade with more than 20,000 miles, which sale came with the balance of the manufacturer's express warranty from GM. The California Supreme Court in *Rodriguez v. FCA US LLC*. (2024) 17 Cal.5th 189, on facts nearly identical to these, held that a "*new vehicle*" for purposes of the SBA does not include a used vehicle that is sold with some balance remaining on the manufacturer's express warranty. In addition, Plaintiff has not established that GM was the "*seller*" of the vehicle under the UCC. Plaintiff fails to state a warranty claim under state law and thus Plaintiff's causes of action for violations of the Moss-Magnuson Act fail as well. Plaintiff has failed to raise a triable issue of material fact.

Leave to amend is denied. While the court recognizes that *Rodriguez* was decided after the Complaint was filed, the decision came out in October 2024, almost two years ago. Plaintiff could have brought a motion for leave to amend long before the opposition to this motion was due. Plaintiff has not submitted a proposed amended Complaint, nor has she shown good cause for the delay in seeking leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTIONS TO COMPEL FURTHER RESPONSES (X4)

Tentative Ruling:

Continue the hearing on all Motions to September 23, 2026, at 8:30am, D-4.

The Defendants are Ordered to file a supplemental declaration at least 10 days before the next hearing date, showing that they have served their supplemental, verified responses to all motions on Plaintiff. If Defendants have served the verified responses on Plaintiff, these motions will be denied as moot, and no sanctions will be awarded. If Plaintiff does not agree that the supplemental, verified responses have been served, Plaintiff's counsel shall file a declaration at least 5 court days before the next hearing date, explaining how defense counsel is non-compliant, and requesting that the hearing go forward.